

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
MAGISTRATE JUDGE NINA Y. WANG

Civil Action:	15-cv-00720-NYW	Date:	August 14, 2017
Courtroom Deputy:	Brandy Wilkins	FTR:	NYW COURTROOM C-204*
Court Reporter:	Julie Thomas		

<i>Parties</i>	<i>Attorney(s)</i>
SILO ROMERO,	<i>Andrew S. Petroski</i>
Plaintiff,	<i>J. Keith Killian</i>
v.	
HELMERICH & PAYNE INTERNATIONAL DRILLING CO.,	<i>James D. Kilroy</i>
Defendant.	<i>Neal J. G. McConomy</i>

COURTROOM MINUTES/MINUTE ORDER

TRIAL TO JURY – DAY ONE

8:38 a.m. Court in session

Appearances of counsel. Plaintiff Mr. Silo Romero appears with Messrs. Killian and Petroski. Mr. Conley Pritchard, and Mr. Jordan Peila appear with Messrs. Kilroy and McConomy.

Court and counsel address pretrial matters including Exhibit No. 82 and Exhibit No. 91.

9:01 a.m. Court in recess

9:24 a.m. Court in session

Jury pool is present, sworn and *voir dire* begins.

10:50 a.m. Court in recess for morning break.

11:09 a.m. Court in session

Jury *voir dire* continues.

12:00 p.m. Court in session. Jury escorted out of the courtroom.

12:04 p.m. Discussion and argument held regarding Batson challenge.

12:13 p.m. Court in recess

12:33 p.m. Court in session

The court allows the peremptory challenge regarding Juror No. 100349362 (01-0289) and does not reinstate the juror based on the Batson challenge.

EXCUSED FOR CAUSE BY THE COURT

NONE

Plaintiff's Peremptory Challenges

1. 100367204
2. 100353161
3. 100347928

Defendant's Peremptory Challenges

1. 100339150
2. 100349362
3. 100362904

JURORS SEATED TO TRY THE CASE:

1. 100371948
2. 100371356
3. 100342043
4. 100352710
5. 100357674
6. 100345539
7. 100336661
8. 100365897

Jury is empaneled.

Opening remarks by the Court.

12:56 p.m. Court in recess for lunch break.

1:45 p.m. Court in session, jury is not present.

A juror has indicated that she cannot serve due to hardship.
Juror No. 100371356 is dismissed for hardship.

1:55 p.m. Court in session – jury present. Opening statement by Mr. Killian.

2:36 p.m. Opening statement by Mr. Kilroy.

2:57 p.m. Witness, Erica Herrera, PA, called and sworn by video conference.
Exhibits 67, and 82-1 through 82-15 are admitted.

3:28 p.m. Cross-examination of Ms. Herrera by Mr. Kilroy.

3:34 p.m. Re-direct examination of Ms. Herrera by Mr. Killian.

3:41 p.m. Witness Erica Herrera is excused.

3:43 p.m. Witness, Craig Gustafson, MD, called and sworn by video conference.
Direct examination of Dr. Gustafson by Mr. Killian.

3:51 p.m. Cross-examination of Dr. Gustafson by Mr. Kilroy.

3:53 p.m. Witness Craig Gustafson is excused.

3:53 p.m. Jury admonished and excused, to be present in the jury room tomorrow at
8:45 a.m.

Court provides observations. Counsel should be ready at 8:30 a.m. to address any pretrial
matters.

4:01 p.m. Court in recess. Trial continued to 9:00 a.m. tomorrow. Total time in court: 05:32